

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THAILAND

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Thailand, grounded in the EIA/EHIA system under ONEP, the Administrative Court, constitutional community rights, and documented community campaigns

This guide uses the Thai legal terms you will actually encounter (the EIA, EHIA and IEE, ONEP and the Expert Review Committee, public participation, the Administrative Court, community rights under the Constitution, the National Human Rights Commission, and so on), each explained in plain language where it first comes up. Thailand's laws and political context change; the core mechanics below apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Thai terms are given with a short English gloss.

A note on money. Budgets in this guide are in Thai baht (THB). Every figure is indicative — Thai community campaigns range from near-zero (volunteer-run, using the free Administrative Court and public data) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

A note on risk. Thailand can be a dangerous place to defend land and environment. Community and environmental defenders have faced **SLAPP** lawsuits (see Section 13), harassment, and worse. This guide flags safety throughout and urges you to get advice from a human-rights lawyer or organisation early.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Thailand — and the levers are specific, so knowing which ones work is half the battle. Thai law requires many large projects to pass an **EIA** (Environmental Impact Assessment) — and, for the most damaging categories, an **EHIA** (Environmental and Health Impact Assessment) — before they can proceed, and it guarantees **public participation** while that assessment is prepared and reviewed. The **Constitution** recognises **community rights** to manage and protect natural resources, and requires study and consultation before projects with severe impact. And Thailand's **Administrative Court** has shown a real willingness to **suspend or invalidate approvals** — most famously when the Supreme Administrative Court halted dozens of industrial projects at Map Ta Phut for breaching the constitutional environmental protection.

That is a genuine toolkit. The honest counterweight is that Thailand is a development- and investment-driven country, often governed with a strong executive hand; public participation is frequently run as a formality; the EIA is prepared by consultants the developer hires; the political and legal context has been shaped by periods of military government and restrictions on assembly and speech; and — most seriously — communities and defenders who oppose projects have faced **SLAPP** lawsuits (strategic lawsuits designed to silence them), harassment, and real physical danger. Communities across Thailand — fighting coal and power plants, industrial estates, mines (including gold and potash), dams, special economic zones, port and highway projects, and developments threatening rivers, forests, coasts, farmland, and health — have organised anyway, and while stopping a national-priority project outright is hard, delay, the invalidation of a defective EIA/EHIA, tighter conditions, and forcing genuine participation are all achievable.

What "winning" realistically means. Rarely a simple permanent government "no" to a promoted project — though an **Administrative Court** ruling that suspends or invalidates an approval is exactly that when you get it. More often: an EIA or EHIA sent back or invalidated for defects (very often a **defective public-participation process** or weak baseline data); conditions tightened; a project delayed for years until its economics or politics change; a permitting agency persuaded to withhold a permit; or genuine participation and health assessment forced where they were skipped. Each has happened. The realistic goal is to make the project slow, costly, and legally exposed — and to use the participation, EIA/EHIA, Administrative Court, community-rights, and NHRC levers that Thailand actually responds to, while keeping your people safe.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which assessment (IEE/EIA/EHIA) and permits apply, which agency decides, whether community rights are engaged, and the deadlines.
2. **Documentation** — build an evidence record strong enough for participation, an NHRC complaint, and an Administrative Court case.
3. **Local opposition** — organise a durable community movement, because sustained local pressure is what Thailand's system responds to most (while managing real risk).
4. **Legal challenges** — use public participation, the EIA/EHIA process, the Administrative Court, constitutional community rights, and the NHRC.
5. **Media strategy** — generate coverage that raises the political cost of approval and helps protect the movement.

No single step wins alone. The combination — local pressure plus participation, the EIA/EHIA and Administrative Court routes, and community rights — is what works.

A realistic picture of the odds. Be honest with your community from the start about what is likely. Most projects the state promotes and that reach a decision are approved, often with conditions — an outright rejection is the exception, not the rule, though an Administrative Court invalidation for defective participation or a serious defect does happen. The more common wins are incremental and cumulative: an EIA or EHIA sent back or invalidated; a project suspended by the court while defects are fixed; genuine participation or a real health assessment forced; conditions tightened; a delay of months or years that changes the economics or lets an election or a change of government intervene; or an agency compelled to do its duty. None of these is a single dramatic veto, but each has stopped, shrunk, or reshaped real Thai projects — and Map Ta Phut showed the court can suspend even a major industrial complex. A campaign that measures itself only against total victory will feel like it is losing even as it wins; one that banks each delay, each condition, and each concession keeps morale and momentum. Plan for a marathon, not a sprint — and protect your people along the way.

Your rights here are real, not favours. Thailand's Constitution recognises the right to a healthy environment and, expressly, **community rights** to manage and protect natural resources (Sections 43, 57 and 58), and requires study and consultation before projects with severe impact; the NEQA guarantees public participation in the EIA/EHIA; and the Official Information Act guarantees access to state-held information. That framing matters practically: when an agency runs a token participation process, waves through a weak assessment, or stonewalls an information request, it is not merely being unhelpful — it is potentially breaching obligations you can enforce through the Administrative Court, the NHRC, and the information commission. Approach the process as a rights-holder, not a supplicant — while taking the SLAPP and safety risks in Section 13 seriously.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Thailand's system leans toward investment and large projects, is often run with a strong executive hand, treats participation as a formality, and exposes defenders to SLAPPs and risk. Assessing that honestly helps you choose the right tools: the strongest routes are usually a rigorous intervention in **public participation**, an **Administrative Court** case on

a clean defect (above all a **defective participation process** or a weak EIA/EHIA), a **community-rights** argument under the Constitution, and an **NHRC** complaint, all combined with sustained, well-protected community and political pressure. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including national-priority projects, SLAPPs, and the safety of defenders.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines, which assessment and agency apply, and whether community rights are engaged. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going — and how to stay safe.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Thailand is a unitary state with a strong central government, and environmental assessment is governed chiefly by the **Enhancement and Conservation of National Environmental Quality Act (NEQA) B.E. 2535 (1992)**, as amended (notably by NEQA No. 2, B.E. 2561/2018). Power over a project is shared between the **central government** (the Ministry of Natural Resources and Environment and its bodies, the sector ministries, and — for the biggest projects — the **Cabinet**), the **permitting agencies** (which grant the actual operating permits), and, more weakly, **provincial and local authorities**, within a framework set by the **Constitution**.

The bodies that decide — and what each one controls

ONEP — the assessment gatekeeper. The **Office of Natural Resources and Environmental Policy and Planning (ONEP)**, under the Ministry of Natural Resources and Environment, administers the EIA system: it registers the licensed consultants who write the reports, reviews them, and manages the process. Its **Environmental Impact Evaluation Bureau** does the administrative review.

The Expert Review Committee (ERC / "Kor Chor Kor"). The technical committee, appointed by the **National Environment Board (NEB)**, that reviews an EIA/EHIA report and decides whether to approve it. Approval by the ERC is the key gate for most projects.

The National Environment Board (NEB) and the Cabinet. The NEB sets policy and appoints the committees; for the most severe projects (and those needing Cabinet approval), the report and comments go up to the NEB and the **Cabinet** for a final decision. For EHIA projects, an **independent organisation's opinion** and further public hearings feed into that decision.

The permitting agency. The EIA/EHIA approval is not itself the permit — it is a precondition. The actual **operating permit** is granted by the relevant sector agency (for example the Department of Industrial Works under the **Factory Act**, an energy regulator, or a minerals authority), which must take the approved assessment into account and can attach conditions.

Provincial and local authorities. Provinces and local administrations handle some land-use, local permits, and public order, and are political actors — but most large-project decisions are central.

Which one is "yours"? Ask: which **assessment** does this project need — an **IEE** (initial), an **EIA**, or an **EHIA** (for the ~12 most severe categories)? Who **approves** it — the **ERC**, and does it go to the **Cabinet**? Which agency grants the **operating permit**? And does the project engage **community rights** or affect health severely (triggering the EHIA and stronger participation)? Pinning this down is Step 1, and it decides the deadlines, the decision-makers, and which grounds apply.

How a decision is actually made — the journey of a project

For a project requiring an EIA or EHIA, the path is roughly:

1. **Screening and scoping.** The project is classified by type and size (set by ministerial notification with NEB approval) to determine whether it needs an **IEE**, an **EIA**, or an **EHIA**. Scoping — including **public participation** — sets what the report must cover.
2. **The report and public participation.** The developer's **licensed consultant** prepares the report, and **public**

participation runs alongside it — at scoping, during the assessment, and at the draft-report review stage, through **public hearings** and comment. **This is your main formal moment** to get objections on the record — and a **defective participation process is one of the most common and successful grounds** for later challenge.

3. **ERC review and approval.** ONEP reviews the report and forwards it to the **Expert Review Committee (Kor Chor Kor)**, which approves, rejects, or sends it back for revision. Common grounds for rejection or later invalidation are weak baseline science, flawed impact modelling, inadequate mitigation, and defective participation.
4. **EHIA extra steps.** For an EHIA, after ONEP/ERC there is a further stage: an **independent organisation** (on environment and health) gives its opinion, and the permitting agency (or, where required, the **Cabinet**) holds further public hearings before the final decision.
5. **Permit and monitoring.** The permitting agency grants the operating permit, subject to conditions and mitigation, and the developer must submit **monitoring reports to ONEP every six months**. A breach of conditions is an enforcement — and litigation — opening.

Beyond the assessment, the project needs its sector permits and to comply with land-use and local rules.

The rulebook — the policies that decide the outcome

- **NEQA and the EIA/EHIA regulations.** Was the right assessment required, properly scoped and done, with genuine public participation, and lawfully approved? The core battleground.
- **The Constitution — community rights (Sections 43, 57, 58).** Does the project respect the community's right to manage and protect natural resources, and was the required pre-decision study and consultation carried out for a severe-impact project?
- **Sector law (the Factory Act, minerals, energy, forest and land law).** The operating permit and separate grounds live here.
- **Health.** For EHIA projects, the health assessment and the independent opinion are distinct, powerful requirements.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Thailand actively courts industrial investment, energy, mining, and infrastructure (including special economic zones and the Eastern Economic Corridor); state enterprises are themselves major developers; the EIA is written by consultants the developer pays; and governments have at times prioritised speed and investment over scrutiny. None of this is illegal, but it explains the default lean toward approval — and why the community's best levers are participation, the EIA/EHIA and Administrative Court routes, community rights, the NHRC, and organised local and political pressure, rather than trust that the process leans your way.

The overseers — who watches the decision-makers

- **The Administrative Court (and Supreme Administrative Court)** — the key forum for challenging unlawful approvals and agency inaction; it suspended dozens of projects at Map Ta Phut and has ordered agencies to act on pollution.
- **The National Human Rights Commission (NHRC)** — investigates human-rights and, expressly, **community-rights** violations; its findings and recommendations carry moral and political weight and can support a court case.
- **The Ombudsman** — investigates grievances against state agencies and can refer constitutional questions.
- **The National Anti-Corruption Commission (NACC) and the Office of the Auditor-General** — corruption and public-money oversight.
- **The independent environment-and-health organisation** — for EHIA projects, its opinion is a formal check.

Naming the right body signals you understand the system, and getting the NHRC, the independent organisation, or — ultimately — the Administrative Court engaged at the right moment can change a project's whole trajectory.

A quick map of the words you will actually hear

The vocabulary is half the barrier, so here is the shorthand in plain terms. The **NEQA** is the environmental-quality Act that requires the assessments. An **IEE** is an initial study; an **EIA** is the full Environmental Impact Assessment; and an **EHIA** is the Environmental *and Health* Impact Assessment required for about twelve of the most severe project types — it adds a health study, an independent organisation's opinion, and extra public hearings. **ONEP** is the office that administers the system and registers the licensed consultants who (paid by the developer) write the reports; the **ERC** or **Kor Chor Kor** is the Expert Review Committee that approves them; the **NEB** is the National Environment Board above it, and the biggest projects go to the **Cabinet**. **Public participation** is your formal chance to object at scoping, assessment, and draft-report stages — and a **defective participation process** is the flaw courts most often act on. The **permitting agency** grants the actual operating permit once the assessment is approved. The **Administrative Court** (and **Supreme**

Administrative Court) is where you challenge an unlawful approval and can seek a **temporary injunction** to halt work. **Community rights** are the constitutional protections (Sections 43/57/58) for a community's management of its own resources; the **NHRC** is the National Human Rights Commission that investigates their violation; and a **SLAPP** is a strategic lawsuit a developer or agency may file to silence you — the reason to work with a human-rights lawyer from the start. Keep this list to hand — using the right term signals you understand the system and cannot be brushed off.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Thai and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Thailand sits inside the table: the **Administrative Court** genuinely invalidates approvals (above all for **defective public participation**), and **community rights** and the **NHRC** give real leverage — but a project the government treats as a national or investment priority, in a context where defenders face **SLAPPs** and risk, is a hard, often years-long fight, so combine every lever with durable, well-protected local and political pressure.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (THB)	What "Success" Means
Documentation only	5-10%	3-6 months	2,000-60,000	Project slowed; public better informed
Local opposition only	20-30%	6-24 months	10,000-300,000	Local pressure; agency takes notice
Public participation only	10-20%	1-4 months	2,000-40,000	On record; can shape or defeat the report
NHRC complaint only	10-20%	6-24 months	0-20,000	Finding of community-rights violation; leverage
Administrative Court only	25-40%	12-48 months	5,000-400,000	Approval suspended or invalidated
Community-rights argument	20-35%	12-48 months	5,000-300,000	Constitutional protection invoked; project checked
Media only	10-15%	3-6 months	2,000-60,000	Public knows; no action by itself
Docs + local opposition	30-40%	12-24 months	30,000-400,000	Pressure plus tightened conditions
Local + political	30-45%	12-30 months	30,000-400,000	Agency/provincial resistance
Court + participation + NHRC	40-55%	18-48 months	50,000-800,000	Approval invalidated; participation forced
All steps combined	45-60%	18-48 months	100,000-1,500,000	EIA/EHIA invalidated, participation forced, delay/redesign, or withdrawal

Key insight: all steps together are several times more effective than any single one — and in Thailand the mix that works leans on **local pressure + public participation + the Administrative Court + community rights + the NHRC**, not any single lever. The distinctive Thai advantages are that the Administrative Court has invalidated approvals (especially for defective participation), that the Constitution protects community rights, and that the EHIA adds an independent health check and extra hearings for the worst projects.

A note on legal cost: public participation, an NHRC complaint, and information requests are free or low-cost, and the Administrative Court is designed to be relatively accessible (you can file without a lawyer, though counsel helps greatly). The main unavoidable cost is good expert evidence — a scientist, physician, or hydrologist — where the case turns on technical proof. Public-interest and human-rights lawyers and organisations take strategic cases. Note the real, separate risk of SLAPP countersuits (Section 13), which is a reason to work with a lawyer from the start.

Effectiveness Visualization

SUCCESS PROBABILITY (EIA/EHIA invalidated, participation forced, project delayed/redesigned, or withdrawn)

FAVOURABLE SCENARIO (a clear participation/EIA defect, community rights engaged, a responsive court):

All steps combined:	45–60%
Court + participation + NHRC:	40–55%
Community-rights argument:	20–35%
Single step:	5–30%

TILTED SCENARIO (a national/investment-priority project, SLAPP risk):

All steps combined:	30–45%
Court (defective participation):	20–35%
Local + political:	20–35%
Single step:	3–15%

How to read this honestly. In Thailand, the strongest single legal fact is often a **defective public-participation process** — courts have invalidated approvals where community engagement was inadequate or improperly documented — followed by a **weak EIA/EHIA** (bad baseline data, flawed modelling, inadequate mitigation) or a **community-rights breach**. Where a project is a national or investment priority pushed by the state, even a strong case is harder, the fight can run for years, and defenders face SLAPP and safety risks. But even a "loss" that delays a project, forces genuine participation or a real health assessment, or wins tighter conditions is a real outcome — and Thai campaigns (Map Ta Phut and others) reshaped projects and policy even when developments were not stopped outright.

Step Importance Ranking (When All Combined)

1. **Local opposition** — a durable, well-protected community movement is the engine; Thailand's system responds to sustained, organised local pressure.
2. **Documentation** — the raw material for participation, an NHRC complaint, and any court case.
3. **The Administrative Court and community rights** — the distinctive routes that invalidate approvals and invoke constitutional protection.
4. **Public participation and the NHRC** — cheap, essential, and (for participation) the source of the most common winning ground.
5. **Media and political pressure** — the amplifiers that move agencies and the government, and that help protect the movement.

Winning Thai campaigns combined a durable community organisation, a rigorous evidence file, a rigorous participation intervention, an Administrative Court case (often on defective participation) plus a community-rights argument and an NHRC complaint, sustained media, and political pressure — no single track alone, and all while managing SLAPP and safety risk.

What Thai Campaigns Actually Show

A few patterns recur across documented Thai fights. **Defective participation is the winning ground** — the Administrative Court has repeatedly shown willingness to invalidate approvals where public participation was inadequate or badly documented, so scrutinising and challenging the participation process is often the single most productive legal move. **The Administrative Court genuinely bites** — the **Map Ta Phut** case, in which the Supreme Administrative Court suspended dozens of industrial projects for breaching the constitutional environmental protection, showed that even a large industrial complex can be halted, and the court has also ordered agencies to act on pollution. **Community rights and the NHRC add leverage** — the constitutional community-rights provisions and NHRC findings support both the politics and the court case. And **SLAPPs are a real and recurring hazard** — developers and agencies have used defamation and other suits to silence defenders, so campaigns that plan for this (and use human-rights lawyers) are more resilient. The through-line is that Thailand rewards communities that combine durable, protected local organisation with the participation, court, community-rights, and NHRC levers.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farmland, rivers, coasts, forest, community forest, health of nearby residents), and what the project would do to it. Obtain the **EIA or EHIA report** from **ONEP** or the permitting agency — much of it is public, and it is where the developer's consultant, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference — that list is the skeleton of your participation objections and any later case. Pay special attention to **water** (rivers, aquifers, coasts), **health** (for EHIA projects especially), and **community forest and land**.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) which **assessment** applies — IEE, EIA, or **EHIA**; (b) who **approves** it — **ONEP** and the **ERC (Kor Chor Kor)**, and whether it goes to the **Cabinet**; (c) which agency grants the **operating permit**; and (d) whether **community rights** or severe health impacts are engaged (triggering the EHIA and stronger participation). Name the bodies and the politics. Because Thailand's live levers are participation, the court, community rights, and the NHRC, know both the decision-makers and the grounds that apply.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: an EIA/EHIA **rejected by the ERC or invalidated by the Administrative Court** (very often for defective participation or weak science); a refused or conditioned **operating permit**; an **NHRC** finding; a **community-rights** ruling; or political defeat. Map the points and aim at the ones Thailand actually responds to — above all the participation and EIA/EHIA defects the court will act on.

Question 4: When Is the Decision Final?

Diarise the deadlines — Thailand's are real: the **public-participation windows** (scoping, assessment, draft-report review, and the EHIA hearings); the ERC/Cabinet decision; and, decisively, the **Administrative Court filing deadline** — a case must generally be filed within a set period (commonly **90 days** from when you knew or should have known of the act, with longer periods for some environmental duties), so confirm the exact deadline with a lawyer the moment an approval or permit issues. Standing and deadline rules are strictly applied. Missing the court deadline can forfeit the route.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which companies (and parent companies, including state enterprises and foreign investors) are behind the project, whether land or concessions changed hands before the proposal, whether the project carries a "national interest," SEZ, or Eastern Economic Corridor designation, and whether any decision-maker has a tie to the developer. Use public sources — the company registry (**DBD**), land records, officials' asset declarations (filed with the NACC), and procurement records. Build a dated, sourced timeline. Keep it rigorous and — given SLAPP and safety risks — private until you are ready; Section 11 and Section 13 cover doing it safely.

Output of Step 1: a one-page fact sheet with the project's exact description, the assessment and approving bodies, the permit, whether community rights apply, the politics, the specific act or lever to pursue, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a coal-fired power plant and jetty is proposed on a coast near fishing communities and a community forest. Working the questions: **Q1** — the report admits impacts on air quality and health, on coastal and marine resources, on fisheries, and on water. **Q2** — a coal power plant is one of the severe categories, so it needs an **EHIA**, approved via **ONEP/ERC** with an **independent-organisation opinion** and, likely, **Cabinet** involvement; the operating permit comes from the energy authority. **Q3** — the live levers are: rigorous **public participation** at every stage; an **Administrative Court** case on **defective participation** or a weak EHIA; a **community-rights** argument (the community's constitutional right to manage its coast and forest); and an **NHRC** complaint. **Q4** — you diarise the participation windows and, once approval/permit issues, the ~90-day court clock. **Q5** — the DBD and procurement records show the company (often a state enterprise or a big private developer) and the timeline. In an afternoon you know which levers are open — and that participation, the court (especially on participation defects), community rights, and the NHRC, not a single dramatic move, are your strongest cards — and that you should line up a human-rights lawyer early because of SLAPP risk.

STEP 2: DOCUMENTATION

Documentation separates a campaign the authorities, the NHRC, and the courts take seriously from one dismissed as

complaint. It is also what your participation objections, an NHRC complaint, and any Administrative Court case all live or die on — and in Thailand, documenting **water and health impacts**, the **community's rights and use of the land/forest/coast**, and the **adequacy of the participation process** is especially decisive. Build three layers. (Given SLAPP and safety risks, keep sensitive material secure and share on a need-to-know basis.)

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

Water and coast. Document the current state of rivers, streams, aquifers, coasts, and marine resources — quality and quantity — using official data, academic studies, and your own dated records. Water and coastal/fisheries impacts are decisive in many Thai conflicts.

Health and community. Document the human baseline — nearby homes, schools, health stations, the population, existing health conditions, and any existing pollution — because for **EHIA** projects the health baseline is central, and health impacts strengthen both the case and the human story.

Forest, land, and community rights. Document habitats, protected species, and **community forest and land use**, and the community's rights and long use of the resources, using forestry and land records and your own mapping — because the constitutional **community-rights** argument turns on showing the community's role in managing and using those resources.

How to hold it. Keep everything dated, sourced, geo-referenced, and backed up securely in more than one safe place. A well-organised baseline is more useful than a merely large one.

A note on doing your own measurements. You do not always need an expensive lab. Dated, geolocated photographs of a river, a coast, a forest, or farmland *before* the project are evidence, and simple, consistent records — a monthly photo from the same spot, a note of a stream's flow and clarity, a log of the fish catch or the health complaints in the village — build a baseline no consultant's snapshot can match. Water and health are decisive issues in most Thai conflicts, so this is where community-run monitoring pays off most: a modest, well-documented sampling programme upstream and downstream, or a simple health log kept with a sympathetic clinic, can produce numbers the NHRC and the court will take seriously — and Thai cases often hinge on the quality of exactly this evidence. Where a specific figure will matter (heavy metals in water, air pollution near homes, a health pattern), that is where to spend or seek expert help. The principle is to capture the ordinary, unremarkable "before" now, cheaply and often, because once the machines arrive it is gone forever and its absence is the single most common reason harm cannot later be proved.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the developer's **EIA or EHIA** — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the report itself concedes, with page references. Unarguable.
2. **Weak or flawed science** — scrutinise the **baseline data and impact modelling** especially; **inaccurate or insufficient baseline data and flawed modelling are leading grounds** for rejecting or invalidating an EIA/EHIA, and consultants under time pressure often cut corners.
3. **Underestimated or omitted impacts** — downplayed water, health, and coastal effects, inadequate **mitigation measures** (another common ground), and **cumulative impacts** with other projects in the same area (a powerful gap, especially in industrial clusters like the Eastern Seaboard).
4. **Participation adequacy** — whether the public participation was genuine, properly noticed, and properly documented. **A defective participation process is the single most successful ground** in Thai environmental litigation, so document every flaw: inadequate notice, hearings that excluded affected people, ignored objections, missing documentation.

Get expert eyes on it. A critique carries far more weight when a qualified professional — a scientist, physician, hydrologist, or ecologist — has reviewed and signed it, even pro bono. Universities, medical and academic experts, and environmental and health NGOs are sources of expertise. Because Thai cases often hinge on the admissibility and quality of scientific evidence, expert review is not optional for a serious challenge. The goal is a written impact critique that reads as technical, that ONEP, the NHRC, and the Administrative Court can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, agencies, the NHRC, and the courts — and, for EHIA projects, health is a formal legal requirement. Document:

- **Health** — the specific risks (air pollution, water contamination, heavy metals, dust) to nearby residents, drawing on recognised standards and, where possible, a physician's assessment; the health case is both a human story and, for EHIA projects, a legal ground.
- **Economy and livelihoods** — effects on farming, fishing, tourism, and the resources livelihoods depend on. Quantify it.
- **Community, land, and culture** — the loss of community forest, coast, farmland, and a valued way of life, and the strain on the community.

Package this layer twice: a rigorous version for participation, the NHRC, and any court, and a plain-language one-page version for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record (water, health, community use first) before ground is broken; secure it.
- **Phase 2: Impact (Months 2-3)** — dissect the EIA/EHIA and the participation record; line up expert review before the participation windows so your critique is ready to file.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Missing the participation windows or the court deadline** — file on time with your best evidence; the ~90-day court clock is unforgiving.
- **Neglecting the participation record** — the defective-participation ground is your best; document every flaw in it.
- **Weak science** — Thai cases hinge on evidence quality; get expert review of the baseline data and modelling.
- **Only environmental data** — the NHRC and courts respond to health, community-rights, and economic arguments too. Breadth wins.
- **Ignoring the report's own admissions** — the EIA/EHIA is a source of concessions. Quote it back, with page numbers.
- **Careless security** — given SLAPP and safety risks, protect sensitive material and sources.

Documentation Budget Breakdown (THB)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering (esp. water/health)	2,000–20,000	30,000–300,000
Expert technical/health report	0 (pro bono)	50,000–500,000
Independent monitoring/sampling	5,000–40,000	40,000–300,000
Legal consultation on the file	0 (NGO/clinic)	20,000–200,000
Printing/outreach/travel	2,000–30,000	30,000–150,000

Much can be done for near-zero with pro-bono experts and public data. Spend where a paid report materially strengthens an NHRC complaint or a court case — for most Thai cases that is the **water, health, or baseline-science** report on the decisive issue. One solid report on the point the case turns on is worth more than five general ones.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at ONEP and the permitting agency. In Thailand the official documents for a project — the EIA/EHIA report, the review record, the approval and its conditions — are held by **ONEP** (which maintains an EIA information system) and the permitting agency. Check these regularly; the legal clock often runs from an act you learn of there.

The EIA/EHIA and the participation record. Get the developer's report as it is publicised — much is public, and it is

where the consultant admits harm. The **participation record** is what you scrutinise most closely for the winning ground.

Baseline environmental and health data. Pollution Control Department and other agency data on air, water, and pollution; forestry and marine data; and health-station and academic studies.

Ownership, concessions, and money. Company ownership from the **Department of Business Development (DBD)**; land and concession records; officials' asset declarations (filed with the **NACC**); and public-procurement records.

How to force a document open. A request under the **Official Information Act B.E. 2540 (1997)** compels a state agency to release information it holds, with an appeal to the Official Information Commission if refused. Use the wording in Section 8E.

The NHRC. The **National Human Rights Commission** investigates community-rights and human-rights violations; its investigation can surface documents and produce findings that support your case.

Free and low-cost help. Human-rights and environmental lawyers and organisations (Thailand has several strong ones working on community rights, the environment, and defender protection) advise and litigate, and university clinics take strategic cases; the NHRC, the Ombudsman, and the information route are free to approach. Because of SLAPP risk, connect with a defender-support or human-rights-lawyer network early.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding bodies, and the local-ally entries point you to the community networks, environmental and human-rights organisations, and legal groups already working nearby. Pull that thread first, then follow it into ONEP, the registries, and the information requests above.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Sustained, visible local pressure is the single biggest factor in whether a Thai project is stopped or reshaped — because the levers that matter (an agency withholding a permit, a court case with community weight, an NHRC finding, political defeat) all respond to organised communities. Thailand has a strong, if hard-won, tradition of community and grassroots organising — the assembly-of-the-poor and community-rights movements, community forests, and networks of affected villagers who have fought dams, mines, power plants, and industrial estates for decades. Build on that tradition — and build with an eye to safety, because Thai defenders face SLAPPs and real risk.

Three principles carry special weight here: **legitimacy and rootedness** (a movement led by the affected community and its own networks is far harder to dismiss, and it is the community's own use and rights that the constitutional community-rights argument protects); **durability and unity** (Thailand's landmark fights were sustained over years, and developers and agencies have used selective benefits and division to split communities, so unity is a strategic asset); and **safety** (protect leaders, keep actions lawful, and connect early with human-rights lawyers and defender networks).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the most affected. Reach the people whose water, health, land, forest, or livelihood is most directly at stake, and the community's own leaders and networks. Listen first: concrete local concerns (a river, a coast, a forest, health) motivate more than abstractions.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — water, health, forest and land, fisheries, community rights. Different concerns reach different people.

Step 1c: Form or strengthen the community organisation. Constitute or activate a **community group or network** with clear aims, or work through existing village and community-forest structures. This is the vehicle that coordinates participation, files the NHRC complaint, negotiates with agencies, and — with legal advice — brings the Administrative Court case. Keep decisions transparent and collective; it protects legitimacy and resists the division developers attempt. Connect the group to a **human-rights lawyer or organisation** from the start, both for strategy and for protection against SLAPPs.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community meeting. Hold a public meeting to inform, decide collectively, and mandate representatives; bring

the maps, the EIA/EHIA's own admissions, and the participation deadline. A visible, united meeting also signals seriousness — and a formal community decision carries real weight in the community-rights argument.

Step 2b: Opposition materials. One-page, factual, sourced materials; lead with water, health, forest, and rights stakes and the deadline. Include how to take part in the public hearings and submit objections.

Step 2c: Mass participation. Coordinate **mass attendance and objections** at the public hearings and in the comment periods, and document the process carefully (attendance, exclusions, how objections were handled) — because that documentation is the raw material for the **defective-participation** ground. Many voices carry weight; a well-documented flawed process is a winning card.

Step 2d: Media at launch. Time it to the participation window so coverage and the deadline reinforce each other — and so visibility helps protect the movement.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation outreach. Bring in national and regional environmental and human-rights organisations (several litigate and provide technical and defender support), academic and medical experts, community-rights networks, and, where relevant, faith and student groups. Each adds credibility, reach, lawyers, expertise, and protection.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging clearly before disagreements arise, and settle how decisions are made. Who represents the community? Who instructs the lawyer? Who files with the NHRC? Who speaks to the press? Settling this early prevents the splits — and the co-optation — that sink movements, and clarifies who carries the legal risk.

Step 3c: Coordinated public work. Joint participation and objections, joint NHRC complaints, shared experts and lawyers, shared costs, and a coordinated approach to the agencies, the province, and the national government.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Political pressure. Lobby the provincial authorities, sympathetic MPs and parties, and national bodies for a refusal or withheld permit; engage the NHRC and the Ombudsman; press the responsible ministry. Organised communities and NHRC attention matter.

Step 4b: Public actions and media (ongoing). Lawful assemblies and peaceful protest are a constitutional right, but the Thai context has at times restricted assembly, and defenders face SLAPPs and risk — so get legal advice, keep actions lawful and safe, and prioritise protecting leaders. Steady media keeps the issue alive, signals durability, and adds a measure of protection. Feed the story new pegs — the EIA/EHIA, the participation process, the NHRC complaint, the court case.

Step 4c: Prevent failure points. Movements fade or fracture when they miss the participation windows or the court deadline, rely on sentiment over evidence, are split by selective benefits, peak too early, or lose leaders to SLAPPs or intimidation. Diarise every deadline, build the file, decide collectively, guard unity, protect people, and pace to the decision — which can run for years.

Worked example: a network that unlocks the strong levers

A coastal community learns a power plant will affect its fishery, forest, and health. A wave of anger and social-media activity appears — real energy, no leverage. What converts it into force happens in the first weeks and is deliberately unglamorous. First, the community organises **through its own networks and community-forest structures**, taking formal collective decisions, because it is the community's own use and rights that the constitutional argument protects. Second, it **connects to a human-rights lawyer and a defender-support organisation** at once — both for strategy and because a coal project draws SLAPP and intimidation risk. Third, it drives **mass, well-documented participation** at the EHIA hearings, recording every flaw in the process, because a **defective-participation** case is the strongest legal ground Thailand offers. Fourth, it brings in a **physician and a marine scientist** to critique the EHIA's health and baseline data. By the time the EHIA is approved, the network can file an **Administrative Court** case on defective participation and weak science, an **NHRC** complaint on community rights, and sustain political pressure — with its leaders supported against SLAPPs. None of that required a court win yet, but it made every later lever real. The lesson generalises: **in Thailand, the networks you organise through, the participation you document, and the legal protection you line up in month one are what make the court, community-rights, and NHRC levers real — and your leaders safe — by month eight.**

Opposition Building Budget: Year-Long Campaign (THB)

Highly variable. A lean, community-run movement operates on **tens of thousands to a few hundred thousand baht** (meetings, materials, travel, the participation process), much of it volunteer. A campaign expecting litigation should budget for **expert reports (50,000–500,000)** and **legal costs** — though the Administrative Court is relatively accessible, NGOs and clinics take strategic cases, and human-rights lawyers support defenders. Thai movements typically fund the legal stage through **community contributions, solidarity and NGO support, and coalition cost-sharing**. Keep transparent, collective accounts — it protects legitimacy and resists co-optation — and budget, too, for the possibility of defending against a **SLAPP**.

STEP 4: LEGAL CHALLENGES

Thailand gives communities real legal tools — public participation, the EIA/EHIA process, the Administrative Court, constitutional community rights, and the NHRC — but they are configured differently from many countries, and choosing the right one is essential. Three tracks — participation, oversight (NHRC and the independent organisation), and the courts. Throughout, work with a lawyer, both for strategy and because opposing a project can draw a **SLAPP** countersuit.

TRACK 1: PUBLIC PARTICIPATION AND THE EIA/EHIA (the front door)

- **Public participation.** Take part — and get objections on the record — at every stage: **scoping**, the **assessment**, the **draft-report review**, and (for EHIA) the **extra hearings**. It can shape the report, the conditions, and the decision, and — critically — **a defective participation process is the most successful ground for later challenge**, so document the process meticulously as you take part.
- **Comments to ONEP/ERC.** Submit technical and procedural objections to ONEP and, through it, the Expert Review Committee — on weak baseline data, flawed modelling, inadequate mitigation, and defective participation, the very grounds on which reports are rejected.
- **The EHIA independent organisation.** For EHIA projects, make your case to the **independent environment-and-health organisation**, whose opinion feeds the final decision.

TRACK 2: OVERSIGHT — THE NHRC AND OMBUDSMAN (the leverage route)

- **A complaint to the NHRC.** The **National Human Rights Commission** investigates human-rights and, expressly, **community-rights** violations. A complaint can surface documents, produce a finding that a project breaches the community's constitutional rights, and generate real political and evidential leverage for a court case. It is free.
- **The Ombudsman.** Investigates grievances against state agencies and can refer certain constitutional questions; a route where an agency has acted improperly.

TRACK 3: THE ADMINISTRATIVE COURT (the decisive route)

- **A case in the Administrative Court.** The key forum. You can challenge the **lawfulness of the EIA/EHIA approval** or the **operating permit** — for defective participation, weak or unlawful assessment, inadequate mitigation, or breach of the Constitution — and ask the court to **suspend and then invalidate** the approval. The **Map Ta Phut** case showed the Supreme Administrative Court will suspend even major projects; the court has also **ordered agencies to act** on pollution (compelling duties they wrongly treated as discretionary). File within the **deadline** (commonly ~90 days from the act), mind the **standing** rules, and — importantly — you can request a **temporary injunction** to halt work pending the case.
- **The Supreme Administrative Court.** Hears appeals; its rulings set the precedents (including Map Ta Phut) that shape the whole system.
- **Constitutional and civil routes.** Constitutional community-rights arguments run through the administrative case (and, in some matters, other courts); civil claims can pursue compensation for harm.

The three legal challenge types

TYPE 1: PARTICIPATION + EIA/EHIA (the front door)

Objections at every stage, aimed at the winning grounds (defective participation, weak science, poor mitigation). Free, and the source of your best court ground.

TYPE 2: THE NHRC AND OMBUDSMAN (the leverage route)

A free complaint that can find a community-rights violation and generate leverage and evidence for court.

TYPE 3: THE ADMINISTRATIVE COURT (the decisive route)

The court that suspends and invalidates approvals — especially for defective participation — and can order agencies to act. Thailand's sharpest legal tool.

Legal Strategy Decision Tree

1. **Is participation open?** → Take part and **document every flaw** in the process now — it is your best future ground.
2. **Are community rights or human rights engaged?** → File an **NHRC complaint**; use its investigation and finding.
3. **Has the EIA/EHIA been approved or a permit issued?** → Prepare an **Administrative Court** case within ~90 days, and request a **temporary injunction** to halt work.
4. **Is an agency failing a legal duty (e.g. pollution control)?** → Consider an Administrative Court case to **compel action**, as communities have done.

Litigation Success Factors

The right ground (defective participation above all; weak/unlawful assessment; inadequate mitigation; a community-rights breach); a meticulously documented participation record; standing and a timely filing (~90 days); a rigorous, expert-backed evidence file (the science must be admissible and strong); a temporary-injunction request to prevent irreversible work; and experienced public-interest counsel. Missing any one weakens the case — and plan for a possible SLAPP.

What to Avoid: Legal Failures

Missing the ~90-day court deadline or the participation windows; failing to document the participation flaws; relying on sentiment rather than a specific defect (defective participation, weak science, a breached duty); weak or inadmissible scientific evidence; and litigating without defender support in a context where SLAPPs are common.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often work in Thailand — so you file the right fact against the right ground.

A defective public-participation process → invalidation (the strongest ground). Feed it with: your meticulous record of inadequate notice, excluded people, ignored objections, and missing documentation.

Weak or flawed EIA/EHIA science → rejection / invalidation. Feed it with: your expert critique of the baseline data and impact modelling, and the report's own gaps.

Inadequate mitigation measures → invalidation / conditions. Feed it with: the specific harms the mitigation fails to address, expert-assessed.

A breach of community rights (Constitution s.43/57/58) → NHRC finding and court ground. Feed it with: proof of the community's use and management of the resources and the failure to study or consult before a severe-impact project.

Ignored cumulative impacts → assessment ground. Feed it with: a map and list of the other projects in the area and the report's silence on their combined effect.

An agency failing a legal duty (e.g. pollution control) → an order to act. Feed it with: the duty, and the evidence it has not been performed.

The pattern: match one clean, documented defect to one clear ground, **lead with defective participation** (Thailand's most successful ground) and the **science** and **community-rights** grounds, and get them into participation, before the NHRC, and — if needed — before the Administrative Court within the deadline, with a temporary-injunction request. A human-rights or environmental NGO can tell you fast which ground is live.

STEP 5: MEDIA STRATEGY

Media rarely stops a project by itself, but it raises the political cost of approval, protects the movement and its leaders (visibility can be a shield against SLAPPs and intimidation), sustains momentum, and reaches experts and allies you would not otherwise find.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the EIA/EHIA's own damning admissions (quoted, with page numbers), a named community member whose water, health, or livelihood is at stake, a clear deadline, and a striking image (the threatened coast, river, or forest). Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-and-Goliath frame + a visual = coverage. Thai conflicts — coal and power plants, mines, industrial estates, dams, and threats to health, water, coasts, and community forests — draw regional and national attention on exactly this formula, especially where health or a community forest is at stake.

Know the Outlets That Cover This Beat

Map the national outlets and their environment/investigations desks, the strong regional and community press and radio (which reach affected communities directly), and specialist environmental and human-rights media. Build a contact list with names and beats.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship with a journalist beats a dozen releases. Offer access — to the site, to affected community members, to your experts.

Why media matters even when it doesn't make the front page

Coverage does quieter work: it reaches an expert who reviews the EHIA for free, a lawyer or NGO that will bring the case, an official at the NHRC, and it creates a dated public record that helps protect leaders who face SLAPP and safety risks. A steady drumbeat of accurate coverage, plus NHRC attention, moves agencies and the government more reliably than one national splash — and Thailand's biggest conflicts became national stories that shifted policy.

Sample Media Timeline

Launch with the participation window; refresh at each milestone — the mass participation, the NHRC complaint, the approval, the court case, the injunction request. Each is a fresh news peg.

Media Measurement

Track coverage, but measure what matters: whether agencies and the NHRC are responding, whether the movement is growing and its leaders are safer, whether experts and allies come forward, and whether the politics around the project is shifting.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones through the agency's registry and keep dated proof of anything you file — Thai deadlines (especially the ~90-day court clock) are real and proof of filing matters. Given SLAPP risk, have a lawyer review anything that names or accuses a company.

8A. Email to a reporter (story pitch)

Subject: [Province]: community challenges [project] before [deadline] — documents attached

Dear [name],

A [project type] is proposed at [location, province]. The developer's own EIA/EHIA admits [specific admitted impact, quoted, with page number], including impacts on [the river/coast/forest/health] that [community] depends on. The public-participation window closes on **[date]**.

The affected community, organised as **[network/group]**, is taking part in the hearings, [preparing an NHRC complaint,] and preparing an Administrative Court case on [defective participation / weak assessment]. The human stakes: [health/water/livelihood point].

I can connect you with community members and our experts, and arrange a visit. Could we talk this week?

[Name] · [Organisation] · [phone] · [email]

8B. Letter to a decision-maker (ONEP / ERC / permitting agency / province)

Subject: [Project] — [file/reference number]

To [ONEP / the Expert Review Committee / the permitting agency / the Governor]:

We write on behalf of [community / network] regarding [project] at [location]. We respectfully ask you to

[reject/withhold approval of the EIA/EHIA / require genuine public participation / refuse the operating permit] for the following reasons:

1. [Ground 1 — e.g. the public-participation process was defective because [reason].]
2. [Ground 2 — e.g. the baseline data and impact modelling are inadequate.]
3. [Ground 3 — e.g. the project breaches the community's rights under the Constitution.]

We request a written response. We are ready to provide the underlying evidence.

[Signatories, community/network, contact]

8C. Objection in public participation

Objection on the [EIA/EHIA] for [project], [agency], reference [number]

[Community / network] submits the following objection within the participation process: 1. **Participation.** [The process was defective because [inadequate notice / exclusion / ignored objections / missing documentation].] 2.

Science. [The baseline data / impact modelling is inadequate because [reason]; evidence attached.] 3. **Health /**

water. [Impacts on health and water are underestimated.] 4. **Community rights.** [The project affects our constitutionally protected use and management of [forest/coast/resources].] 5. **Cumulative impact.** [This project, with other projects in the area, must be assessed together.]

We ask the authority to **reject the report** or, at minimum, require full assessment, genuine participation, and strict conditions.

[Date, community/network, contact; attach evidence]

8D. Coalition / solidarity outreach letter

Subject: Please support our fight on [project] — [province]

Dear [organisation / lawyer]:

We are a community opposing [project] at [location], which threatens [water, health, forest, community rights]. We are taking part in the hearings, [preparing an NHRC complaint,] and preparing an Administrative Court case.

Your [litigation experience / technical support / defender support] would strengthen and help protect our effort. Could we meet to agree how to work together?

[Name, community/network, contact]

8E. Access-to-information request (Official Information Act)

Subject: Request for information under the Official Information Act B.E. 2540

To [ONEP / the permitting agency]:

Under the **Official Information Act B.E. 2540 (1997)**, we request: 1. the full EIA/EHIA report and approval file for [project]; 2. the public-participation record and any independent-organisation opinion; 3. [specific data — baseline

studies, monitoring reports, the conditions of approval].

Please provide these within the legal period. If any part is refused, please state the specific legal basis; we reserve the right to appeal to the Official Information Commission.

[Name/community, date, contact]

8F. Complaint to the National Human Rights Commission (NHRC)

Subject: Complaint regarding violation of community rights — [project]

To the National Human Rights Commission:

We, [community / network] of [area], submit this complaint regarding [project] at [location]. The project [breaches our constitutional community rights to manage and use [forest/coast/resources] / threatens our health / was approved after a defective participation process]. We attach [evidence]. We request an investigation and findings, and ask to be kept informed.

[Community/network, date, contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Community of [province] challenges [project] before [deadline]

[Network / community] today [submitted objections to / announced a legal challenge against] [project] at [location], citing [top two grounds], and [is preparing an NHRC complaint / an Administrative Court case] on [defective participation / weak assessment]. "[Short, human quote from an affected community member]," said [name, role].

The developer's own EIA/EHIA admits [quoted impact]. Approval rests with [body]; the participation window closes on [date]. [If relevant: this severe-impact project requires an EHIA and stronger participation.]

Contact: [name, phone, email]. Photos, the full objection, and interviews available on request.

8H. Request for a temporary injunction (through counsel, to the Administrative Court)

Subject: Request for a temporary injunction — [project], [case reference]

To the [Administrative Court], through counsel:

In our case challenging the [EIA/EHIA approval / operating permit] for [project], we request a **temporary injunction** to suspend [construction/operation] pending judgment, on the grounds that the approval is likely unlawful (defective participation / inadequate assessment) and that irreversible harm to [health/water/forest/coast] would otherwise occur before the case is decided.

[Counsel, community, date; attach the case and evidence]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual reference and dates, and — for anything heading to court or naming a company — have counsel experienced in administrative and human-rights litigation review it. Deadlines are real (the participation windows; the **~90-day** Administrative Court clock). Keep dated proof of everything you file, and — given the real risk of **SLAPP** suits and intimidation — get legal and defender-support advice before naming or accusing anyone publicly.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a network or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project — while keeping yourself safe. In rough order of impact for the effort:

1. **Take part in the public participation and document every flaw.** Attend the hearings, submit objections in your own words, and record inadequate notice, exclusions, and ignored objections — because a **defective-participation** case is Thailand's strongest ground, and your record is the raw material for it.
2. **File a free complaint to the NHRC** if community or human rights are engaged. It can produce a finding and leverage without a lawyer.
3. **Get the EIA/EHIA and quote its worst admission back to the agency.** The developer's own words carry more weight than any outside claim.
4. **Request the file under the Official Information Act** (Section 8E) — including the participation record, often where the case is won.
5. **Send one accurate email to a reporter** (Section 8A). A single story raises the political cost and can reach an expert, a lawyer, or the NHRC — and visibility helps protect you.
6. **Connect with a human-rights lawyer or defender organisation early.** Even a short consultation tells you your best ground and the ~90-day court deadline — and gives you protection if a SLAPP comes.
7. **Alert your provincial authorities and sympathetic MPs** (Section 8B). Organised communities get results at the political stage.

If you do only the first two, you have put your objections and your community-rights concern on the record and preserved the defective-participation ground — and left a trail others can build on. That is a real contribution, not a token one. Throughout, prioritise your safety.

WHEN THE SYSTEM IS TILTED

Thailand's system leans hard toward investment and large projects, is often run with a strong executive hand, treats participation as a formality, and — most seriously — exposes defenders to **SLAPPs**, harassment, and real danger. Being honest about this is how you pick the tools that actually work, and stay safe.

What This Tilt DOES (and DOESN'T DO)

The tilt speeds approvals, keeps assessment in developer-paid hands, treats participation as a box to tick, and uses the courts against defenders. It does **not** close the doors: the **Administrative Court** has invalidated approvals (especially for defective participation) and ordered agencies to act; the Constitution protects **community rights**; the **NHRC** investigates violations; the **EHIA** adds a health check and an independent opinion; and information rights are real. The key is to combine them, move on time, document the participation flaws, and — critically — protect your people, because the tilt here includes a genuine threat to defenders.

Reading Your Tilt: Responsive, Mixed, National-Priority

- **A clear participation or science defect, a responsive court.** Here participation, the court (on defective participation), community rights, and the NHRC all do real work.
- **Mixed.** A project the government wants but a province or the public resists. Weight shifts toward organised community pressure, media, the NHRC, and a clean court ground — and careful safety planning.
- **National-priority / investment project.** A big power plant, industrial estate, SEZ, or Eastern Economic Corridor project the state is committed to. Assume participation is a formality, the fight will be long, and SLAPP and safety risks are high; prepare the **defective-participation and science case, the community-rights and NHRC routes, sustained pressure, and strong defender protection**. Even here, delay, forced participation, tighter conditions, and — as at Map Ta Phut — suspension are achievable.

Documented Thai Dynamics

The record shows both the wall and the way through. The **Map Ta Phut** case, in which the Supreme Administrative Court suspended dozens of industrial projects for breaching the constitutional environmental protection, showed that even a major industrial complex can be halted. The courts have also **ordered agencies to act** on pollution, rejecting the claim that clean-air duties were merely discretionary. At the same time, Thailand's anti-SLAPP protections are widely regarded as **inadequate** — they apply mainly to private criminal complaints and leave gaps for public prosecutions and civil suits — and Southeast Asia is one of the most dangerous regions in the world for environmental defenders. The recurring, sober lesson is that this terrain can be dangerous, and protecting leaders is part of strategy.

Assessment Framework — Determine Your Situation

Ask: Was the participation process defective (the strongest ground)? Is the EIA/EHIA science weak? Are community rights engaged? Is health severely affected (EHIA)? Is the court likely responsive? Is the project a State/investment priority (a harder, longer fight)? Are leaders at risk of SLAPPs or worse (plan protection)? The answers tell you whether to lead with defective participation, the science, community rights, or the NHRC — usually a combination, with safety woven through.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Thai movements rely on assemblies, marches, and peaceful protest, which are constitutional rights and a deep tradition, alongside the legal and NHRC routes. But the Thai context has at times restricted assembly and speech; defenders face SLAPP suits and, in the worst cases, violence. Know the law, prioritise safety and the protection of leaders, keep actions lawful and orderly, and get legal and defender-support advice before anything that could carry legal or physical risk. This guide notes such tactics exist; it does not advise breaking the law, and the movement's safety and credibility are assets worth protecting.

Honest Assessment

Tilted fights are harder, some are lost, and this terrain can be genuinely dangerous. But "harder" is not "hopeless" — the Administrative Court, community rights, the NHRC, and durable community pressure have suspended and invalidated projects, forced participation, and won tighter conditions, and even an ultimate loss often buys years of delay and an organised, experienced community. Concentrate force where the tilt is weakest — usually the defective-participation ground — protect your people, and settle in for a long campaign if the stakes justify it.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real in Thailand, and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed. Handle it carefully: reckless public accusations can expose you to **SLAPP and defamation** liability and, in this terrain, to real danger.

ONEP, the ERC, and the consultants. The central structural weakness: the EIA/EHIA is written by a **consultant the developer pays**, and reviewed by committees that can be under pressure to approve investment. Signs: a report that reads as the developer's document, weak data waved through, a rushed approval. Lever: the SEIA/EIA rules, the participation record, expert critique, and the Administrative Court.

The permitting agencies and state enterprises. Where the developer is a **state enterprise** (as with some power and infrastructure projects), the promoter and a public body are entwined. Signs: a permit granted despite a weak assessment, or duties treated as discretionary. Lever: the court (including to compel action), and the community-rights argument.

Local and provincial officials. Capture here often runs through patronage and selective benefits used to split communities. Signs: a sudden change of stance, a rushed local permit, an official tied to the developer. Lever: asset declarations (NACC), the ethics rules, and the Ombudsman.

The companies. Watch for land or concessions quietly acquired before a project is public, opaque or well-connected ownership, and the use of **benefits and social programmes to divide communities** — and the use of **SLAPPs** to silence critics. The DBD surfaces ownership; but prove ties from public records, not rumour.

The courts and "national interest." The Administrative Court has shown real independence (Map Ta Phut), but the broader system has been shaped by periods of military government and post-coup law, and "national interest" framings grant wide discretion. Treat the Administrative Court as a genuine, if not guaranteed, check; where genuine judicial or official corruption appears, it is a matter for the control bodies.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through the proper bodies — the **NACC** for corruption, the **Auditor-General** for public money, the **NHRC** for rights, and the **Ombudsman** — not social media. In Thailand especially, a reckless public accusation can trigger a **SLAPP or criminal defamation** suit, hand the company a way to change the subject and split the community, and endanger people. Name capture privately in your strategy; prove it publicly only when you can, through a lawyer, and protect your leaders.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more (and litigation, if it comes, much longer — Thai environmental cases can run for years). Here is how they fit onto one timeline.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — project, assessment (IEE/EIA/EHIA), approving bodies, permit, whether community rights apply, the politics, the lever to pursue, every deadline. - Organise through the community's own networks and structures. - Begin baseline documentation (Step 2, Layer 1), water, health, and community use first; secure it. - Request records via the Official Information Act, including the participation record. - **Connect to a human-rights lawyer and defender-support organisation** — early, both for strategy and protection.

Months 2-3 (Launch). - Take part in **public participation** and **document every flaw** (Step 4, Track 1) — the key deadline and your best future ground. - File an **NHRC complaint** if community or human rights are engaged (Track 2). - Hold the community meeting and launch media timed to the participation window (Steps 3 & 5). - Complete the EIA/EHIA critique with expert help, focusing on baseline science, health, water, and participation (Step 2, Layer 2).

Months 3-6 (Expansion). - Build the coalition — environmental and human-rights NGOs, academic and medical experts, community-rights networks (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - Assess the legal routes with counsel; prepare the Administrative Court case. - Sustain media and political pressure; keep leaders protected.

Months 6-12 (Pressure & Decision). - Escalate political pressure on the province, MPs, the NHRC, and the ministry (Step 3, Phase 4). - When the EIA/EHIA is approved or a permit issues, act within **~90 days**: file the **Administrative Court** case and request a **temporary injunction** to halt work (Step 4, Track 3). - Keep the NHRC and participation records central to the case.

Beyond 12 months. - Litigation and appeals can run for years and may reach the Supreme Administrative Court; a temporary injunction protects you meanwhile. - If the project proceeds, pursue monitoring, enforcement of conditions, and further complaints for any breach. - Keep the community organisation and the file alive; the movement and evidence are assets for the next fight, and protecting leaders remains a priority.

Warning Signs — Act Early

The EIA/EHIA scoping or hearings are announced (act now); a report is filed with ONEP; concessions or land are being acquired; a "national interest," SEZ, or Eastern Economic Corridor designation is used; selective benefits start circulating (a divide-and-co-opt warning); participation is being run as a formality; a defender receives a legal threat (SLAPP warning). Early action beats late reaction — and documenting the participation flaws and lining up legal protection early is far stronger than scrambling after an approval issues.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the live lever (usually defective participation, weak science, community rights, and the court); organise through the community's own networks and build a broad coalition; document rigorously, participation flaws and water/health first; use the Administrative Court, community rights, and the NHRC, with a temporary-injunction request; sustain media and political pressure; hit every deadline; and protect their leaders against SLAPPs. Losing campaigns: miss the participation windows or the ~90-day court deadline; fail to document the participation flaws; rely on sentiment; get split by selective benefits; peak early; or lose leaders to SLAPPs and intimidation for want of protection.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Thailand takes several forms, and it is worth naming them so you recognise a win when you get one: - an EIA/EHIA **rejected by the ERC or invalidated by the Administrative Court** (very often for defective participation); - a project **suspended by the court** (the Map Ta Phut outcome), even temporarily; - **participation and a real health assessment forced** where they were skipped; - **tightened conditions**, or a refused or conditioned operating permit; -

an **NHRC finding** of a community-rights violation that shifts the politics; - an **agency ordered to act** on a duty it wrongly treated as discretionary; - a project **delayed for years** until its economics or politics collapse, or a **redesign** that removes the worst harm; - or **policy change** driven by a landmark case even where a specific project proceeds.

Thai communities have achieved each — usually through organised community pressure plus participation, the court, community rights, and the NHRC, not through a single dramatic win.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the participation was defective or the science is weak, an Administrative Court case may be well worth it. If the ~90-day deadline has passed, effort shifts to the NHRC, monitoring, provincial politics, and the next election. If every avenue is exhausted — and given the real risks — redirect accordingly. Continuing is not always right; neither is quitting at the first setback — Thailand's biggest wins came after years of persistence. Throughout, weigh the safety of your people above all.

The Bottom Line

Thailand's system leans hard toward investment and large projects, keeps assessment in developer-paid hands, often treats participation as a formality, and exposes defenders to SLAPPs and danger — but it hands communities a real set of levers: **public participation** in every EIA/EHIA; a distinctive **EHIA** with a health assessment and independent opinion for the worst projects; an **Administrative Court** that has suspended and invalidated approvals — above all for **defective participation** — and ordered agencies to act; constitutional **community rights**; the **NHRC**; and information rights. Communities that organise through their own networks and build a broad coalition, document to the participation and water/health standards, take part in and meticulously record the participation process, use the Administrative Court, community rights, and the NHRC — with a temporary-injunction request — rather than betting on a single dramatic move, guard their unity against co-optation, keep steady media and political pressure, and protect their leaders against SLAPPs have invalidated and suspended projects, forced participation, won findings and conditions, delayed and reshaped developments, and changed policy — and can again. No single step wins; the combination does. Start today by finding your deadlines, organising through your community's networks, documenting the participation, lining up legal protection, and identifying which lever is actually open.